

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
July 23, 2026
8:30 a.m./1:30 p.m.

6. SUNG LEE V. YUNJEE AHN

25FL1114

On April 22, 2026, Petitioner filed a Request for Order (RFO) seeking custody and visitation orders, property control orders, and a 730 custody evaluation. The RFO and Notice of Tentative Ruling were both served on April 24th; a blank FL-320 was not served.

Respondent filed her Responsive Declaration to Request for Order on July 13, 2026. It was served on July 10th. The court finds this to be late filed pursuant to Civil Procedure section 1005(b) which states all opposition papers are to be filed at least nine court days before the hearing date. Section 12c states, “[w]here any law requires an act to be performed no later than a specified number of days before a hearing date, the last day to perform that act shall be determined by counting backward from the hearing date, *excluding the day of the hearing* as provided by Section 12.” Cal. Civ. Pro. § 12c. Section 1005(b) in conjunction with Section 12c would have made July 10th the last day for filing the Responsive Declaration to Request for Order.

Petitioner filed and served a reply declaration on July 14th.

Petitioner asks the court to order a week-on, week-off schedule with exchanges to occur every Friday evening. He asks the court to vacate its prior order giving the children discretion to decline visits and that he be given control of the home located at 915 Bullion Lane in Folsom. He also asks that Respondent be ordered to undergo a 730 Evaluation with Eugene Roeder.

Given that the court just made custody and visitation orders on April 2nd, twenty days before the filing of the RFO, the court deems this to be a motion for reconsideration. Any party may move for reconsideration of a court’s order where the moving party (1) has been affected by the court’s order; and (2) moves for reconsideration within 10 days of the service upon the moving party written notice of the entry of the order. Cal. Civ. Pro. § 1008. The moving party must establish “...new or different facts, circumstances, or law...” that would warrant reconsideration of the order and such facts, circumstances or law shall be set forth in a written affidavit including “...what application was made before, when and to what judge, [and] what order or decisions were made...” *Id.* The moving party must also provide a satisfactory explanation for its failure to present the new or different facts or law earlier. *Yolo County Dept. of Child Support Services v. Myers*, 248 Cal. App. 4th 42, 50 (2016).

Here, the motion for reconsideration is untimely. Even if it was timely, the motion would be denied as Petitioner failed to establish any new or different facts than those that

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were already considered by the court. In fact, nothing that has been provided by Petitioner changes the court's prior determination that it is in the best interests of the children to have the ability to decline visits should they choose to do so. If Petitioner is looking to improve his relationship with the children, the court has already made orders regarding conjoint counseling.

Regarding the request for a 730 Evaluation, that request is also denied. Evidence Code § 730 give the court the discretion to appoint an expert where "...expert evidence is or may be required." Ev. Code § 730. Here, the court does not find that expert testimony is necessary to determine the best interests of the children. As such, the request is denied.

Finally, regarding the request for possession and control of 915 Bullion Lane, that request is also denied. The court is not changing its prior custody and visitation orders and the court does not find grounds to award use or possession of the subject property to Petitioner either in the best interests of the children, or for the purpose of preserving the asset.

Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #6: FOR THE REASONS SET FORTH ABOVE, PETITIONER'S REQUEST FOR ORDER IS DENIED IN ITS ENTIRETY.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.